

the estate previously given to the devisee; in the former case the legacy would be an exception (*b*), and in the latter a charge.

(II.) Assuming the legacy to be, according to the true construction of the will, not an exception but a charge, then if the legacy be given by way of a *condition* imposed on the devisee, the legacy, as the condition is void, sinks for the devisee's benefit (*c*).

(III.) If the estate be devised charged with a sum, say of 1000*l.*, to be paid to the testator's executors and applied in discharge of his debts and legacies, including a legacy to a charity, in this case the charge is raisable as against the devisee, and the charity legacy will be a resulting trust to the testator's heir-at-law (*d*).

(IV.) If the estate be simply devised to one, charged with or subject to a legacy in favour of another, and there is nothing on the face of the will to show that the legacy though expressed in the form of a charge, was meant to be an exception, then the leaning of the Court at the present day would appear to be in favour of the devisee (*e*).

[*158] * (V.) It may be doubted whether the circumstance of a direction for an intermediate payment to the testator's executors of the sum to be raised be a tenable ground of distinction, and should the Court decide in favour of a devisee in a case under the fourth head, such decision would undoubtedly shake those in favour of the heir under the third. It would be a reasonable and intelligible rule to

(*b*) *Cooper's Trusts*, 4 De G. M. & G. 757. See *Tucker v. Kayess*, 4 K. & J. 339.

(*c*) *Poor v. Mial*, 6 Madd. 32; *Arnold v. Chapman*, 1 Ves. 108; *Ridgway v. Woodhouse*, 7 Beav. 437. See *contra* *Bland v. Wilkins*, cited Wright v. Row, 1 B. C. C. 61 note. In *Cooke v. Stationers' Company*, the M. R. said the condition made no difference, as it was no more than a charge, 3 M. & K. 266.

(*d*) *Arnold v. Chapman*, 1 Ves. 108; *Henchman v. Attorney-General*, 3 M. & K. 494.

(*e*) *Cooke v. Stationers' Company*, 3 M. & K. 262; *Baker v. Hall*, 12 Ves.

497 (but the heir was not a party); *Barrington v. Hereford*, cited Wright v. Row, 1 B. C. C. 61; *Jackson v. Hurlock*, 2 Eden, 263; *Amb. 487*; and see remarks of Lord Redesdale and Lord Eldon on this case in *Tregonwell v. Sydenham*, 3 Dow, 208-213. Lord Eldon assumed the power to be good, but that, as it was exercised in favour of a charity, the devisee was not affected by a void execution of the power, and was rightly allowed to retain the estate; in fact, there was no appointment to a charity, for the letter, not being of a testamentary character, could not be read. See *contra* *Gravenor v. Hallum*, Amb. 643.